

[*107] ascertained, the whole gift will fail (*h*); * but the fact that the amount to be applied for the unlawful purpose has not been *expressly* stated in the gift will not make the whole gift void, and the Court will, if it be practicable, ascertain the amount which would have satisfied the unlawful purpose, and hold the gift good as to the residue (*a*).]

[(*h*) *Chapman v. Brown*, 6 Ves. 404; *Limbrey v. Gurr*, 6 Mad. 151; *Cramp v. Playfoot*, 4 K. & J. 479; *Fowler v. Fowler*, 33 Beav. 616. But see *Re Williams*, 5 Ch. D. 735; *Re Birkett*, 9 Ch. D. 576.]

[(*a*) *Mitford v. Reynolds*, 1 Phil. 185; *Re Rigley's Trust*, 15 W. R. 190; *Fisk v. Attorney-General*, 4 L. R. Eq. 521; *The Magistrates of Dundee v. Morris*, 3 Macq. 134; and see *Dawson v. Small*, 18 L. R. Eq. 114; *Hunter v. Bullock*, 14 L. R. Eq. 45; *Re Williams*, 5 Ch. D. 735; *Champney v. Davy*, 11 Ch. D. 949; *Re Birkett*, 9 Ch. D. 576. It should, however, be pointed out that in *Fisk v. Attorney-General*, *Dawson v. Small*, *Hunter v. Bullock*, *Re Williams*, and *Re Birkett*, *ubi sup.*, all of which were cases of trusts for the maintenance of family tombs out of the income of a fund and for the application of the surplus for a lawful purpose, the trust for the lawful purpose was held to apply to the *whole* income and not merely to the *surplus* after ascertaining what would have been required for the unlawful purpose. It is difficult to see upon what principles these cases rest; but it is submitted that the grounds upon which they are put do not affect the proposition in the text. Thus, in *Fisk v. Attorney-General*, the case was argued on the footing that the whole fund was given for the lawful purpose

charged with a portion for an unlawful purpose, and the charge failing, the gift of the whole for the lawful purpose was good; and this would seem to have been the view adopted by V. C. Wood, for he observed, p. 527: "I think I ought, in this instance (if the gift of the residue had been exclusive of the amount required for the repair of the grave), to have ascertained the amount required for the void purpose, but the better construction is, that the whole of the gift is to be taken by the rector and church-wardens."

So again in *Hunter v. Bullock* and *Dawson v. Small*, both before V. C. Bacon, the trust for keeping up the tombs was treated as being merely honorary: that is, "an obligation either to be performed or not, as the persons to whom the custody of the money was given thought fit," and the gift for the lawful purpose was held to be "certain in amount" (*i.e.*, of the whole income), "subject only to the fulfilment of the honorary trust."

In *Re Williams* and *Re Birkett*, V. C. Malins and M. R. followed the previous decisions; M. R. in the latter case (in which *Re Rigley's Trusts* was not mentioned), intimating that had the case been unfettered by authority, he should have arrived at a different conclusion.]